UNHRC

United Nations Human Rights Council

Agenda: *Addressing systemic discrimination and persecution of ethnic and religious minorities in Southern Asia*

Table of Contents

1. Letter from the Executive Board 3
2. About UNHRC 4
3. Functions of UNHRC 6
4. NGOs and other international organisations 7
5. About the agenda 9
6. Nature of evidence 11
7. Foreign Policy 12
8. How to look up for foreign policy? 13

Letter from the Executive Board

This is a concise guide designed with the purpose of providing the readers a basic understanding of the committee, agenda and the flow of debate that we look forward to. However, mere referral to the Background Guide might be insufficient for participation in the simulation. The Executive Board encourages the delegates to use this document as their first step towards research.

The agenda focuses on entrenched patterns of exclusion and abuse observed particularly in Southern Asia, arising from laws, policies, institutions and social practices that disproportionately harm minority communities. Across the region, ethnic and religious minorities face unequal treatment, targeted violence, restrictions on fundamental freedoms, and limited access to justice, often with persistent impunity. These practices violate the core of human rights obligations and risk fueling social unrest, displacement, and regional instability, and hence require the attention of the Council.

Performance in this committee will not be determined by previous delegating experience or debating ability alone. Delegates who succeed will be those who combine research with institutional awareness, strategic thinking with collaboration, and diplomacy with the art of persuasion. The Executive Board rewards realism, coherence and the ability to draw similarities between patterns across the region.

Best Regards,

Vishal Chowdary: Chairperson
Pranathi Vemuri: Vice-Chairperson

About UNHRC

The United Nations Human Rights Council (UNHRC) is the main intergovernmental body within the United Nations responsible for human rights. It replaced the former United Nations Commission on Human Rights (UNCHR).The Council was established on the 15th of March, 2006 by the United Nations General Assembly (UNGA) resolution 60/251, whose primary responsibility is to strengthen the promotion and protection of human rights across the globe.

The Human Rights Council is composed of 47 Member States, and provides a multilateral forum to address human rights violations and country situations. It responds to human rights emergencies and makes recommendations on how to better implement human rights in reality on ground.

The Member states are elected directly and individually by a majority of the 193 Member States of the UNGA. Elections take place every year, and one-third of the members are renewed each year. The seats are equitably distributed among the five UN regional groups namely;

- **African Group:** 13 seats
- **Asia-Pacific Group:** 13 seats
- **Eastern European Group:** 6 seats
- **Latin American and Caribbean Group:** 8 seats
- **Western European and Others Group:** 7 seats

Rotating membership of the Council reflects the UN's diversity and gives it legitimacy when speaking out on human rights violations in all countries.

The Bureau of the Human Rights Council comprises the *President*, who is assisted by *4 Vice-Presidents*; each representing their respective UN regional group.

The Human Rights Council consists of different mechanisms and entities, as set in the Council's '*Institution-building*' resolution 5/1 of 3rd April, 2007. These include:

- **Universal Periodic Review (UPR)**
- **Special Procedures**
- **Advisory Committee**
- **Complaint Procedure**

Functions of UNHRC

1. The Human Rights Council is a **recommendation** body. Its authority is normative, investigative, and persuasive and not judicial in nature.

2. It serves as an international forum for dialogue on human rights issues with UN officials, mandated experts, states, civil societies and other participants. Adopting a resolution sends a strong political signal which can prompt governments to take action to remedy those situations.

3. It holds crisis meetings known as **Special Sessions** to respond to urgent human rights situations. 39 Special Sessions have been convened, till date.

4. It reviews the human rights records of all United Nations Member States through the national reports submitted by the countries and collectively makes recommendations via the UPR.

5. It appoints Special Procedures that serve as the eyes and ears of the Council by monitoring situations in specific countries or by looking at specific themes.

6. It authorizes commissions of inquiry (COIs) and fact-finding missions (FFMs), which produce hard-hitting evidence on war crimes and crimes against humanity.

NGOs and other international organisations

Amnesty International conducts independent research on human rights violations worldwide; documents abuses such as torture, arbitrary detention, censorship, and unlawful killings. It holds ECOSOC consultative status and submits written statements. It also delivers oral interventions and provides evidence to Special Procedures and Commissions of Inquiry, and actively lobbies for country-specific resolutions.

Asian Human Rights Commission (AHRC) focuses on rule of law, judicial independence, policing abuses, and protection of human rights defenders in Asia. It submits documentation on Asian states, participates in interactive dialogues, and feeds ground-level data into UPR processes and Special Rapporteur mandates.

Human Rights Watch (HRW) investigates and reports on violations of international human rights and humanitarian law through field research and legal analysis. It regularly briefs the Council members and submits reports to justify Council resolutions and establishment of fact-finding missions. It engages directly with Special Procedures.

The International Commission of Jurists (ICJ) promotes the rule of law, judicial independence, and application of international human rights law through legal expertise.
It provides legal analyses of state compliance, advises on mandate interpretations, submits expert statements, and supports Special Rapporteurs with jurisprudential input.

International Federation for Human Rights (FIDH) is a federation of national NGOs that documents violations, supports victims, and engages in international advocacy. It coordinates the NGO advocacy at the Council and submits joint reports, country-specific accountability mechanisms, and pushes for renewal of investigative mandates.

Minority Rights Group International (MRG) focuses on protection of ethnic, religious, and linguistic minorities, including indigenous peoples. It engages with minority-related mandates, submits reports to Special Rapporteurs, participates in UPRs, and advocates for inclusion of minority protections in resolutions.

South Asians for Human Rights (SAHR) is a regional network addressing civil, political, and minority rights issues in South Asia. It provides regional perspectives during Council sessions, contributes to UPR submissions, and raises South Asia–specific concerns through NGO statements.

The United States Commission on International Religious Freedom (USCIRF) monitors religious freedom violations globally and advises the U.S. government on policy responses. It is neither an NGO nor a UN body, but its reports are often cited by states, NGOs, and experts during Council debates and documentation.

About the agenda

The agenda on ***addressing systemic discrimination and persecution*** focuses on patterns of exclusion that are not isolated or accidental, but instead embedded within institutions, laws, public policies, and social norms. ***Systemic discrimination*** refers to structural arrangements that consistently disadvantage particular communities over time. This discrimination manifests through unequal treatment in legislation, denial of public services, barriers in education and employment, social exclusion, and restricted access to justice. When such discrimination escalates into persecution, it involves targeted hostility or punishment based on ethnicity, religion, or identity, often taking the form of violence, arbitrary detention, destruction of property, deprivation of basic rights, or forced displacement.

In the context of ***ethnic and religious minorities in Southern Asia***, the agenda addresses groups that differ from dominant populations by language, culture, caste, ethnicity, or belief. Ethnic minorities may include indigenous peoples, caste-oppressed groups, or linguistically distinct communities, while religious minorities vary by country and can include Muslims, Hindus, Christians, Buddhists, Sikhs, Ahmadis, Shias, and indigenous or animist belief groups. Southern Asia, as understood in UN and regional human rights discourse, generally encompasses ***Afghanistan, Bangladesh, Bhutan, India, Nepal, Pakistan, Sri Lanka, and Myanmar***, a region marked by deep diversity as well as long-standing identity-based tensions.

The need for Council action is reinforced by the persistence and scale of violations across Southern Asia. Human rights reporting consistently documents patterns of hate crimes, targeted violence, discriminatory laws, social exclusion, and widespread impunity for abuses against minorities. These violations are not confined to one category of rights but affect voting rights, freedom of religion, access to education and healthcare, livelihood opportunities, and protection from violence, demonstrating a comprehensive breakdown of rights protections.

Unchecked discrimination poses serious risks beyond individual harm. Persistent marginalization of ethnic and religious minorities increases the likelihood of social unrest, internal conflict, and radicalization, while persecution and violence often result in internal displacement and cross-border refugee flows. These dynamics threaten not only national cohesion but also broader regional stability, making the issue one of international concern rather than purely domestic governance.

Many of the associated practices, such as arbitrary detention, collective punishment, discriminatory citizenship regimes, and forced displacement constitute violations of binding international law. Where states have ratified relevant treaties yet fail to uphold their commitments, the Human Rights Council has both the authority and responsibility to scrutinize conduct, highlight violations, and recommend corrective measures. Addressing this agenda is therefore essential to uphold the international human rights framework and prevent the normalization of systemic persecution in the region.

Nature of evidence

Evidence can be presented from a wide variety of sources. However, not all sources are equally credible.

Tier 1: Includes *a publication, statement, resolution, or a document released by any of the UN organs or committees, or by a UN member state in its own capacity.*
The evidence coming from this tier, is considered to be **the most reliable** source of information during the simulation.

Tier 2: Includes any news article published by any official media source that is owned and controlled by the government of the UN member state (state-owned). These include: *Xinhua News (China), BBC (United Kingdom) etc.*
The evidence falling in this tier is considered sufficiently reliable in a case where **no evidence from any of the Tier 1 sources is available** to back the quoted fact, event or situation.

Tier 3: Includes publications from sources such as Reuters, The Times of India, The New York Times etc. Evidence falling in this category is the **least reliable** and **delegates are advised to refrain from quoting information from such sources at all times**.

Foreign Policy

In very simple terms, **Foreign Policy** is how a country behaves, speaks, and makes decisions towards other countries.
It shows:

- ➢ Who a country is friendly with
- ➢ Who it disagrees with or has conflicts with
- ➢ What it supports internationally, as in peace, trade, human rights, security etc

This requires delegates to speak from the country's perspective, and support or oppose resolutions based on what their country would do.

Delegates are advised to refrain from using their personal opinions or beliefs while formulating their stance on the agenda and strictly adhere to the Foreign Policy of the assigned state.

Understanding of the foreign policy, **must** be a checkbox that a delegate is expected to tick off at the very beginning of their research.

It is the foreign policy that must dictate their arguments and the reasoning they give to those arguments.

How to look up for Foreign Policy?

Most of the time, foreign policy of a country is not stated or cited in a document that one could read. **It is not explicitly stated.**
It must be inferred from the actions and statements issued by the country over the years.

The Executive Board thus recommends the following:

- **Refer official government sources**;
  Ministry of External/Foreign Affairs website, official policy statements, press releases etc

  Search like: Foreign Policy of [Country Name]
  should be of great help.

- **Check UN records for a pattern in the arguments and voting;**
  How the country has voted in the past at the UN, speeches made by their representatives, past resolutions it sponsored or opposed etc

- **Focus on**
  a. *The country's alliances*
  b. *Conflicts*
  c. *Stance on human rights*
  d. *Sovereignty*
  e. *Interventions*
  f. *Sanctions*

- **Narrow it to the agenda set for the committee**
  Answer these mandatory questions before preparing a stance for your portfolio:
  a. *Has my country spoken on this issue before?*
  b. *Does it benefit or lose from any substantial action on this agenda?*
  c. *Does it support state sovereignty, intervention, or neutrality?*

This is one of the best methods advised by the Executive Board to get hold of the Foreign Policy of the country that delegates have been assigned with.

Consistency in foreign policy must be seen across an individual delegate's speeches, questions and voting.

Any violation of foreign policy would lead to negative marking and hence the Executive Board encourages delegates to look after their stance and foreign policy on the agenda at all times.